

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Whitney Beber	Team: Squad #09	CCRB Case #: 201707288	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 09/02/2017 5:48 PM	Location of Incident: 1230 Jerome Avenue and the 44th Precinct Stationhouse	18 Mo. SOL 3/2/2019	Precinct: 44		
Date/Time CV Reported Sun, 09/03/2017 1:28 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 09/03/2017 1:28 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Mary Cunningham	17931	954679	044 PCT
2. SGT Eduardo Cabrera	01355	946596	044 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Deramo	20280	958492	044 PCT
2. POM Luis Marte	24133	941288	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Mary Cunningham	Discourtesy: At 1230 Jerome Avenue in the Bronx, Police Officer Mary Cunningham spoke discourteously to § 87(2)(b)	A . Exonerated
B . POF Mary Cunningham	Discourtesy: At 1230 Jerome Avenue in the Bronx, Police Officer Mary Cunningham spoke discourteously to § 87(2)(b)	B . Exonerated
C . POF Mary Cunningham	Abuse: At 1230 Jerome Avenue in the Bronx, Police Officer Mary Cunningham threatened § 87(2)(b) with the use of force.	C . Substantiated
D . POF Mary Cunningham	Discourtesy: At 1230 Jerome Avenue in the Bronx, Police Officer Mary Cunningham spoke discourteously to § 87(2)(b)	D . Substantiated
E . SGT Eduardo Cabrera	Abuse: At 1230 Jerome Avenue in the Bronx, Sergeant Eduardo Cabrera threatened to arrest § 87(2)(b)	E . Exonerated
F . An officer	Abuse: At the 44th Precinct stationhouse, an officer interfered with § 87(2)(b)'s use of a recording device.	F . Officer(s) Unidentified
G . An officer	Abuse: At the 44th Precinct stationhouse, an officer threatened to arrest § 87(2)(b)	G . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
H . An officer	Abuse: At the 44th Precinct stationhouse, an officer threatened to arrest § 87(2)(b)	H . Officer(s) Unidentified
I . An officer	Off. Language: At the 44th Precinct stationhouse, an officer made remarks to § 87(2)(b) based upon ethnicity.	I . Officer(s) Unidentified
J . An officer	Off. Language: At the 44th Precinct stationhouse, an officer made remarks to § 87(2)(b) based upon ethnicity.	J . Officer(s) Unidentified
K . An officer	Off. Language: At the 44th Precinct stationhouse, an officer made remarks to § 87(2)(b) based upon ethnicity.	K . Officer(s) Unidentified
L . An officer	Discourtesy: At the 44th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)	L . Officer(s) Unidentified

Case Summary

On September 3, 2017, § 87(2)(b) filed the following complaint with the Civilian Complaint Review Board) using the Call Processing System. On September 6, 2018, an Intake investigator called § 87(2)(b) and he provided a follow up statement to the complaint he initial made using the Call Processing System.

On September 2, 2017, at approximately 5:48 p.m., § 87(2)(b) and § 87(2)(b) were at One Stop Live, located at 1230 Jerome Avenue in the Bronx, when Police Officer Mary Cunningham and Police Officer Joseph Deramo of the 44th Precinct walked into the store with § 87(2)(b). § 87(2)(b) identified § 87(2)(b) to the officers as the individual who struck her car with his and left the scene. Police Officer Cunningham and Police Officer Deramo approached § 87(2)(b) and handcuffed him.

While § 87(2)(b) Police Officer Cunningham and Police Officer Deramo were by their police vehicle, many people assembled near them. Police Officer Cunningham yelled at the people in the crowd, that included § 87(2)(b) and § 87(2)(b) and told them to “Back the fuck up,” and told them that they had to stay on the sidewalk (**Allegation A and B: Discourtesy, exonerated**). Police Officer Cunningham said to § 87(2)(b) “Don’t make me put you on the floor,” and “don’t make me put you in a headlock” (**Allegation C: Abuse of Authority, substantiated**). Police Officer Cunningham told § 87(2)(b) to “Stop fucking talking,” (**Allegation D: Discourtesy, substantiated**).

Sergeant Eduardo Cabrera and Police Officer Luis Marte, both from the 44th Precinct, arrived on scene. § 87(2)(b) tried to speak to Sergeant Cabrera at which point Sergeant Cabrera told § 87(2)(b) to walk away or he would lock him up, (**Allegation E: Abuse of Authority, exonerated**).

Two officers brought § 87(2)(b) to the 44th Precinct stationhouse. § 87(2)(b) and § 87(2)(b) visited the 44th Precinct stationhouse to obtain information about § 87(2)(b)'s arrest and to retrieve his vehicle. Outside of the 44th Precinct stationhouse, § 87(2)(b) attempted to take pictures of the vehicle that was allegedly involved in the accident with § 87(2)(b)'s vehicle. While he was taking pictures of the vehicle, an officer exited the stationhouse and asked § 87(2)(b) who gave him permission to take pictures (**Allegation F: Abuse of Authority, officers(s) unidentified**). An officer told § 87(2)(b) and § 87(2)(b) that they needed to leave or they would be arrested (**Allegation G and H: Abuse of Authority, officer(s) unidentified**). An officer told § 87(2)(b) that “they” make people nervous and “You know what language you speak,” (**Allegation I, J, and K: Offensive Language, officer(s) unidentified**). § 87(2)(b) told the officer that he was going to sue, to which the officer replied that he did “not give a fuck,” and told § 87(2)(b) that he could sue the whole department (**Allegation L: Discourtesy, officer(s) unidentified**). The officer told § 87(2)(b) that if he came back and § 87(2)(b) and § 87(2)(b) were still there, he would be arrested (within **Allegations G and H**).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) and § 87(2)(b) were not arrested or issued any summonses.

§ 87(2)(b) provided two videos to the CCRB via email. § 87(2)(b) provided five videos to the CCRB via email, two of which were duplicates of the videos § 87(2)(b) provided in his initial complaint.

Findings and Recommendations

Allegation A - Discourtesy: At 1230 Jerome Avenue Police Officer Mary Cunningham spoke discourteously to § 87(2)(b)

Allegation B- Discourtesy: At 1230 Jerome Avenue Police Officer Mary Cunningham spoke discourteously to § 87(2)(b)

Allegation C-Abuse of Authority: At 1230 Jerome Avenue Police Officer Mary Cunningham threatened § 87(2)(b) with the use of force.

Allegation D- Discourtesy: At 1230 Jerome Avenue Police Officer Mary Cunningham spoke discourteously to § 87(2)(b)

Allegation E-Abuse of Authority: At 1230 Jerome Avenue Sergeant Eduardo Cabrera threatened to arrest § 87(2)(b)

§ 87(2)(b) Police Officer Cunningham and Police Officer Deramo are all consistent that once inside One Stop Live, § 87(2)(b) identified § 87(2)(b) to the officers as the individual who struck her car and then left the scene. § 87(2)(b) was handcuffed and then brought outside.

As per § 87(2)(b)'s telephone statement, he went outside approximately five minutes after § 87(2)(b) and the officers did so. Once outside, he observed Police Officer Cunningham, Police Officer Deramo and § 87(2)(b) standing behind a police vehicle. There were “a lot” of people near the officers and § 87(2)(b). Police Officer Cunningham yelled at the people in the crowd, including § 87(2)(b) to “back the fuck up,” and told them that they had to stay on the sidewalk. Police Officer Cunningham told § 87(2)(b) to stop moving around otherwise she was going to put him in a headlock and asked § 87(2)(b) if he wanted to be put on the “floor”. § 87(2)(b) denied moving his body when Police Officer Cunningham made this statement.

§ 87(2)(b)'s sworn statement is largely consistent with that of his telephone statement aside from the following. When he arrived outside, he specified that the crowd was standing on the sidewalk (and used a dated Google Maps photograph to indicate that they were outside of the then Falafel King, approximately three to four meters away from Police Officer Cunningham (Board Review 01).

As per § 87(2)(b) after § 87(2)(b) was handcuffed, she returned to her vehicle. The officers told § 87(2)(b) to get inside of the police vehicle. Individuals whom § 87(2)(b)

believed to be related to § 87(2)(b) began “yanking” him from the officers and told them, “No. That’s not enough to arrest him,” in addition to yelling at the officers.

As per § 87(2)(b) people stood by the sidewalk, approximately the width of two cars away from the officers and § 87(2)(b) was approximately four to five feet away and the closest individual to the officers. Police Officer Cunningham and Police Officer Deramo put § 87(2)(b) against the back of the trunk of the police vehicle. § 87(2)(b) asked the officers what happened and they told him that there had been a “hit and run.” § 87(2)(b) denied hitting anyone and stated that had he, they should take his insurance. § 87(2)(b) told the officers that they could not “just lock him up.” Police Officer Cunningham told § 87(2)(b) to “turn the fuck around.” § 87(2)(b) stated that he did not remember exactly what Police Officer Cunningham told § 87(2)(b) but stated that she used profanity. § 87(2)(b) was very quiet and the crowd’s demeanor was calm. Approximately 10 minutes after the officers and § 87(2)(b) had gone outside, approximately four to five more police vehicles arrived. § 87(2)(b) tried to speak to Sergeant Cabrera to find out what was going on. Sergeant Cabrera told § 87(2)(b) that he did not need to talk to anyone, and told him “just walk away or I’ll lock you up,” (Board Review 05).

As per Police Officer Cunningham, while they were outside by their police vehicle, men from inside the store came outside and began screaming and cursing at Police Officer Cunningham. Some of the men remained by the curb or the side of the street, approximately ten feet away from Police Officer Cunningham. Approximately five to six individuals came as close to approximately four to five feet of Police Officer Cunningham. Police Officer Cunningham told the crowd to “Back up,” several times but they did not comply. Police Officer Cunningham then told the crowd to, “Back the fuck up,” (Board Review 06).

As Police Officer Cunningham was talking to § 87(2)(b) he started to pull away from her, and became “very aggressive.” § 87(2)(b) pushed away from her while he was still rear handcuffed. He “bumped” her to move out of the way, and started to “shake her off,” and kept trying to walk away. § 87(2)(b) told Police Officer Cunningham, “Fucking uncuff me, you can’t arrest me. Get the fuck off me.” § 87(2)(b) pushed against the car and into Police Officer Cunningham while she was holding his left arm with her left hand. In doing so, he bumped Police Officer Cunningham’s shoulder, took two steps to the side of her, and tried to walk around her while she held on to him. She grabbed him with her other hand and pulled him back towards the car. Police Officer Cunningham leaned § 87(2)(b) into the car to maintain control of him. Police Officer Deramo grabbed one of § 87(2)(b) arms while she continued to grab the other. Police Officer Cunningham told § 87(2)(b) to “Stop fucking moving,” because she was afraid he was going to get away from her. Police Officer Cunningham denied having told him to “Stop fucking talking.” At no point did Police Officer Cunningham threaten to use additional force to restrain § 87(2)(b). She did not remember telling § 87(2)(b) “Don’t make me put you on the ground,” and she denied threatening to put him in a headlock.

§ 87(2)(g)
§ 87(2)(b) Police Officer Deramo acknowledged hearing Police Officer Cunningham tell § 87(2)(b) to “stop fucking talking.” Police Officer Deramo did not

remember if Police Officer Cunningham ever said to § 87(2)(b) “Don’t make me put you on the ground. Police Officer Cunningham did not threaten § 87(2)(b) with any additional force to restrain him (Board Review 07).

When Sergeant Cabrera arrived on the scene he estimated that there was a crowd of approximately 10 to 20 people. § 87(2)(b) one of the individuals on the sidewalk approached Sergeant Cabrera and came within one foot of him. Sergeant Cabrera described § 87(2)(b) as “hostile.” Sergeant Cabrera told § 87(2)(b) that he had to move to the sidewalk because they were investigating. Initially § 87(2)(b) refused. Sergeant Cabrera told § 87(2)(b) to move to the sidewalk once or twice. Sergeant Cabrera told § 87(2)(b) that if he did not move to the sidewalk, he would be placed under arrest, after which § 87(2)(b) moved to the sidewalk. Sergeant Cabrera stated during his interview that it was against the law to impede an investigation and that § 87(2)(b) could have been arrested for obstructing governmental administration. Sergeant Cabrera did not remember saying, “Just walk away or I’ll lock you up,” to § 87(2)(b). Sergeant Cabrera did not remember his exact words but knew that he mentioned arrest. § 87(2)(b) was not doing anything else to impede the investigation other than approaching Sergeant Cabrera and initially refusing to comply with his order. Sergeant Cabrera did not witness any of the allegations against Police Officer Cunningham (Board Review 08).

Police Officer Marte stated that he was not present for Sergeant Cabrera’s conversation with § 87(2)(b) because he was paying attention to the number of people gathering. Sergeant Cabrera told the individuals in the crowd to step back and that if they did not, they would be arrested. Police Officer Marte he did not know who Sergeant Cabrera was speaking to precisely (Board Review 09).



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§ 87(2)(b) provided two videos, one of which captured these allegations and is embedded above (Board Review 03). The 35 second video captures Police Officer Cunningham standing with § 87(2)(b) and Police Officer Deramo next to them both. § 87(2)(b) hands are rear handcuffed and his back is against the trunk of a police vehicle. Police Officer Cunningham turned to the individuals who are standing to her right and yells, “Back the fuck up. Back up.” At the point Police Officer Cunningham says this, the camera captures three individuals, one of whom appeared to be behind and within a few feet of Police Officer Cunningham. Police Officer Cunningham turns back to § 87(2)(b) and tells him, “Stop fucking talking. Do not move. Do not move.” At the time she says this, § 87(2)(b) does not appear to be moving. Police Officer Cunningham then turns back to the other individuals, while her hand is still on § 87(2)(b) s arm. § 87(2)(b) appears to shrug his shoulder and say that the officers are arresting him for a “bad accident,” and tells them to take his insurance. At 21 seconds Police Officer Cunningham responds by telling § 87(2)(b) “Don’t make me put you on the ground. Do not move.”

Patrol Guide Procedure 203-09 requires that NYPD officers be “courteous and respectful” in their public conduct (Board Review 10).

There is a question of whether use of strong language during certain confrontations constitutes misconduct. The court has previously given latitude to officers who used otherwise impolite words to address suspects in stressful street situations. See, inter alia, Disciplinary Case Nos. 67797/93; 62280/88. Case No. 67906/93 - 4/4/94 - 9

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **substantiated**.

Patrol Guide Procedure 221-01 states that in all circumstances, any application or use of force must be reasonable under the circumstances to ensure the safety of a member of services or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody (Board Review 11).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.



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In the video embedded above, § 87(2)(b) is still handcuffed and leaning on the trunk of the police car (Board Review 04). At 41 seconds Sergeant Cabrera and Police Officer Cunningham walk to the left of a white silver SUV to § 87(2)(b). Sergeant Cabrera points with to the left with his outstretched left arm. At 45 seconds into the recording, Police Officer Cunningham tells § 87(2)(b) that the situation has nothing to do with him and asks him to please step side. It appears that Sergeant Cabrera says, “You got to listen, get on the side walk, and go over there,” and then at approximately 57 seconds says, “...one more time and I’m going to arrest you.” Sergeant Cabrera indicates with his left arm a total of three times for § 87(2)(b) to move on the sidewalk while he is speaking. It is not until at one minute into the recording that § 87(2)(b) begins to move away from the white SUV and towards the sidewalk as directed.

§ 87(2)(g)

Penal Law Section 195.05 states that a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function or prevents a public servant from performing an official function, by means of interference (Board Review 12).

§ 87(2)(g)

It is therefore recommended that Allegation E be closed as exonerated.

Allegation F- At the 44th Precinct stationhouse, an officer interfered with § 87(2)(b) s use of a recording device.

Allegation G- Abuse of Authority: At the 44th Precinct stationhouse, an officer threatened to arrest § 87(2)(b)

Allegation H: At the 44th Precinct stationhouse, an officer threatened to arrest § 87(2)(b)

Allegation I: At the 44th Precinct stationhouse, an officer made remarks to § 87(2)(b) based upon ethnicity.

Allegation J: At the 44th Precinct stationhouse, an officer made remarks to § 87(2)(b) based upon ethnicity.

Allegation K: At the 44th Precinct stationhouse, an officer made remarks to § 87(2)(b) based upon ethnicity.

Allegation L: At the 44th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)

As per § 87(2)(b)'s telephone statement, at approximately 8:00 p.m. § 87(2)(b) and § 87(2)(b) went to the 44th Precinct stationhouse. When they went inside the stationhouse and stated the reason they were there, an officer told them to wait outside. Once outside of the stationhouse, § 87(2)(b) saw the car that § 87(2)(b) had allegedly hit. As § 87(2)(b) was recording a video of the car an officer approached § 87(2)(b) and asked him who gave him permission to record that car. The officer told all three men that he would arrest all of them for trespassing. § 87(2)(b) told the officer that he was there to pick up § 87(2)(b)'s car and was not trespassing. The officer told § 87(2)(b) that he “makes people nervous,” and “you know what language you speak.” § 87(2)(b) and § 87(2)(b) had been previously speaking Arabic. At that point, § 87(2)(b) said that they were going to sue. The officer replied that he did not care, and that he “did not give a fuck,” and told him that he could sue the whole department.

§ 87(2)(b)'s sworn statement § 87(2)(g) When they went inside the stationhouse, § 87(2)(b) was given permission to stay inside the stationhouse and wait, while § 87(2)(b) and § 87(2)(b) went outside to wait. While § 87(2)(b) was filming the car, an unidentified officer told § 87(2)(b) “You better leave, before I arrest you.”

§ 87(2)(b)'s statement § 87(2)(g) § 87(2)(b) was outside with § 87(2)(b) and § 87(2)(b) when § 87(2)(b) was filming the car. An officer told them that if he went outside, and came back, and they were still there, he would arrest them. However, § 87(2)(b) believed that the unidentified officer was not talking to him because it had already been acknowledged that he was picking up § 87(2)(b)'s car. The officer did not mention anything about trespassing. The officer told them that “you will make the people [around] scared.”

§ 87(2)(b)'s statement is consistent with that of § 87(2)(b)'s. The videos § 87(2)(b) provided do not capture these allegations.

§ 87(2)(b) described the subject officer as a 5’7” tall Hispanic male with a dark complexion, no facial hair, a slim build, in his mid-thirties who was dressed in uniform. § 87(2)(b) described this officer as the initial male officer who entered the stationhouse. § 87(2)(b) described the subject officer as an approximately 38-year old, 5’8” to 5’9” tall Hispanic male with a medium complexion (slightly darker than § 87(2)(b) himself), black hair, no facial hair, a heavy build and dressed in uniform. § 87(2)(b) described the subject officer as a male in uniform.

On January 24, 2018, the undersigned called § 87(2)(b) and scheduled a photo viewing for January 29, 2018, to identify the subject officer. At the time, § 87(2)(b) informed the undersigned that § 87(2)(b) and § 87(2)(b) were in Yemen. On January 29, 2018, § 87(2)(b) missed his appointment. On January 30, 2018, the undersigned called § 87(2)(b) and he

scheduled a photo viewing for February 5, 2018. § 87(2)(b) also stated that he did not know when § 87(2)(b) and § 87(2)(b) would return from Yemen. On February 5, 2018, § 87(2)(b) missed his second photo viewing appointment.

The Tour 3 Roll Call notes that Sergeant Orvieto was assigned as the desk sergeant and that Police Officer Mitchell and Police Officer Gomez were assigned as the assistant desk officers. The Tour 3 Roll Call notes that Police Officer Miller was assigned as the stationhouse front security and that Police Officer Canelo was the telephone switch board operator (Board Review 13). Of those officers, Police Officer Mitchell, Police Officer Gomez, and Sergeant Orvieto were the only Hispanic males.

Police Officer Mitchell's MOS photograph notes that he is § 87(2)(b) black male with brown eyes, a bald head, and an average build (Board Review 14). Sergeant Orvieto's MOS photograph notes that he is a § 87(2)(b), Hispanic male with hazel eyes, brown hair and a heavy build (Board Review 13). Police Officer Gomez's MOS photograph notes that he is a § 87(2)(b) Hispanic male with brown eyes, black hair, and a heavy build (Board Review 28).

Police Officer Gomez's memo book entries on September 2, 2017, note him as having been assigned the day tour, to motor vehicle number 3645. He was not assigned as an assistant desk officer as the roll call stated (Board Review 29).

On November 29, 2017, Police Officer Mitchell was interviewed. He did not recall the incident, and denied having witnessed any of the allegations (Board review 16). On December 28, 2017, Sergeant Orvieto was interviewed. He did not remember the incident and denied having witnessed any of the allegations as well as having done any of them himself (Board Review 15).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations F-L** be closed as **officer unidentified**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 17).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 18).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 19).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 20).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 31).

- Police Officer Cunningham has been a member of the NYPD for four years and has been a subject of one allegation against her which was not substantiated.
- Sergeant Cabrera has been a member of the NYPD for twelve years and this is the first CCRB complaint of which he has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- As of March 23, 2018, the New York City Officer of the Comptroller has no record of a Notice of Claim being filed in regards this to this complaint (Board Review 30).

Squad: 9

Investigator: _____

Signature _____ Print _____ Date _____

Squad Leader: _____
 Title/Signature Print Date

Reviewer: _____

Title/Signature	Print	Date
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